

STATE OF NEW YORK

4840--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 6, 2025

Introduced by M. of A. McDONALD -- read once and referred to the Committee on Higher Education -- recommitted to the Committee on Higher Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to the requirements for certification for certified interior designers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 8305 of the education law, as added by chapter 905
2 of the laws of 1990, paragraph (b) of subdivision 2 as amended by chap-
3 ter 653 of the laws of 1993, is amended to read as follows:

4 § 8305. Requirements for certification. 1. To qualify for certifi-
5 cation to use the title "certified interior designer", an applicant
6 shall fulfill all the following requirements:

7 (a) Application: file an application with the department;

8 (b) Education: have [~~received at least seven years of professional~~
9 ~~training consisting of academic study and work experience relating to~~
10 ~~interior design and in accordance with the commissioner's regulations.~~
11 ~~These seven years shall contain at least two but not more than five~~
12 ~~years of post secondary education, including an associate degree or the~~
13 ~~equivalent, in an approved program of interior design]~~ met the educa-
14 tional requirements required to sit for an examination offered by a
15 national certifying organization for interior design professionals,
16 provided that such certifying organization is approved by the commis-
17 sioner;

18 (c) Experience: have met experience [~~satisfactory to the board and in~~
19 ~~accordance with the commissioner's regulations]~~ requirements deemed
20 necessary to sit for an examination offered by a national certifying
21 organization for interior design professionals provided that such certi-
22 fying organization is approved by the commissioner;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(d) Examination: (1) pass an examination satisfactory to the board in accordance with the commissioner's regulations, and (2) ~~[pass a separate examination satisfactory to the board relative to the fire, safety and building codes of the state]~~ provide a verification from a national certifying organization for interior design professionals that an applicant has passed an examination offered by such certifying organization for interior design professionals, and that the applicant is a certificate holder in good standing from such certifying organization for interior design professionals, provided that such certifying organization is approved by the commissioner;

(e) Age: be at least twenty-one years of age;

(f) Citizenship: meet no requirements as to United States citizenship;

(g) Character: be of good moral character as determined by the department; and

(h) Fees: pay a fee of ~~[three hundred dollars to the department for admission to the two department conducted examinations and for an initial license, a fee of one hundred fifty dollars for each reexamination, a fee of]~~ one hundred thirty-five dollars for an initial license ~~[for persons not requiring admission to a department conducted examination,]~~ and a fee of two hundred ten dollars for each triennial registration period.

2. On recommendation of the board, the department may exempt:

(a) from the requirement of subparagraph one of paragraph (d) of subdivision one of this section, an applicant who holds a license of certification to practice as an interior designer issued to ~~[him or her]~~ the applicant upon examination by a legally constituted board of examiners in any other state or political subdivision of the United States, provided that at the time the license or certificate was issued by such state or political subdivision the applicant met the requirements of paragraph (b) of subdivision one of this section for certification to use the title "certified interior designer" established by this article; or

(b) from the requirements specified in paragraph (b) of subdivision one of this section provided the applicant submits, prior to January first, nineteen hundred ninety-six, satisfactory evidence that the applicant has held ~~[himself or herself]~~ themselves out as an interior designer and has prepared interior design documents in accordance with the requirements set forth in section eighty-three hundred three of this article for a minimum of seven years, has received a secondary school diploma or equivalent, and has passed the examinations required under paragraph (d) of subdivision one of this section.

§ 2. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.